

the bounds of the Marshalsea are called the verge, and that its jurisdiction is confined within the verge, is, because the Marshal *portat virgam (quæ signal pacem) coram Rege per spatium* (d) 12 *leucarum etc. et de virg' predict' dicitur virgata*, and beyond that the Steward and Marshal never had jurisdiction, and that appears in *Fleta* lib. 2. c. 4.

As to the third point, *sc.* the consideration touching the Act of Articuli (e) super Chartas, c. 3. it was resolved, that Articuli super Chartas is as much as to say, (f) *explanationes super chartas*; and the charters here mentioned are the Great Charter and the Charter of the Forest, and so it appears by the preamble, Because the points of the Great Charter of Liberties, and of the Forest, &c. and in *Pierce de Saltmarsh's case*, the book saith, that Herle, Chief Justice, in 6 E. 3. 33. b. ordered the explanations upon the charters, *sc.* the 11th chapter of Champerty to be read. By which it appears, that *articuli* in this case signifies *explanationes*; and some say, *quod dicuntur articuli quia arctant ad obedientiam*: but then it will be asked in what part of Magna Charta can one find any thing concerning the Court of Marshalsea? To that it was answered, that the (a) 29th chapter of Magna Charta extends to it, for there it is enacted *quod nullus liber homo capiatur, vel imprisonetur, aut disseisietur de liber' ten'to suo, vel de libertatibus, vel liber' consuetudinib' suis, aut ullagat' aut exuletur, aut aliquo modo destruatur, nec super eum ibimus, nec super eum mittemus nisi per legale* (b) *judic' parium suorum aut per legem terræ*; by which Act every arrest or imprisonment, and every oppression *contra legem terræ* is prohibited. Then, if any against the law usurp any jurisdiction, and by colour thereof arrest or imprison a man, or in any manner by colour of an usurped authority oppress any man (which is a manner of destruction) against the law, he may be punished by that statute: and because the Steward and Marshal of the Court of the Marshalsea had encroached to them jurisdiction in divers causes which did not belong to them, and by colour thereof awarded precepts sometimes to arrest the body of the defendant, and sometimes by colour of execution to sell, &c. the goods and chattels of the defendant against law, which is an oppression by colour of justice, and a manner of destruction, for that reason this third chapter was enacted for explanation of the said Great Charter, as to the jurisdiction of the said Court of the Marshalsea. So that this Act of Articuli super Chartas, is not introductory of [74 b] a new law, but an explanation of the Great Charter, which was declarative of the ancient common law of England. But it appears also by this third chapter, the parts whereof are now to be considered. This chapter concerning the Court of the Marshalsea is divided into two general parts. *sc.* Into the preamble, and the body of the Act: in the preamble three things are propounded to be remedied by the body of the Act. 1. Of the estates of the Stewards and Marshals, *id est*, concerning the jurisdiction by force of their offices in which they have estates, *sc.* for their lives within the Court of the Marshalsea. 2. Of the pleas which they ought to hold, by which it appears that this chapter was declarative, for the intent of this chapter was to reduce the Court of the Marshalsea to its true and lawful institution, which this word (ought) imports, and therefore this Act demonstrates what pleas they ought to hold, which well agrees with the title Articuli super Chartas, and with the book of 6 E. 3. (c) the explanations of the charter, *i.e.* of the common law. The third is, how they ought to hold the pleas. The body of the Act pursues the parts of the preamble; and first the whole purview thereof extends only to the Court of the Marshalsea of the King's House. As to the pleas which they ought to hold, the body of the Act has made a declaration of three points. 1. Of the causes. 2. Of the persons. 3. Of the place. For these causes, the purview of the Act is in the negative, in part absolutely, and

(d) 4 Co. 47. a. *Antea* 72. b. F. N. B. 241. b.

(e) 2 Inst. 547. 3 Inst. 134. 1 Bulst. 201. 209, 210, 211, 212. 2 Leon. 160. 4 Co. 46. a. 6 Co. 12. a. 20. b. *Antea* 71. a. 5 E. 4. 129. a. Br. Action sur le Stat. 38. 49. 10 H. 6. 13. a. Reg. 185. a. 191. b. F. N. B. 241. b. Rast. Ent. 433. a.

(f) 2 Inst. 538.

(a) 5 Co. 64. a. 11 Co. 99. a. 2 Bulst. 328. 1 And. 158. 1 Roll. Rep. 225. 4 Leon. 61. 2 Inst. 45, 46.

(b) 2 Inst. 48.

(c) 6 Ed. 3. 33. b.